

STATE OF NEW YORK

649--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. CRUZ, EPSTEIN, BICHOTTE HERMELYN, ROSENTHAL, HEVESI, WALKER, GONZALEZ-ROJAS, DAVILA, STIRPE, TAYLOR, SHIMSKY, SIMON, WOERNER -- read once and referred to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the civil practice law and rules, the general municipal law and the court of claims act, in relation to the tolling of statute of limitations for individuals in state custody

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The civil practice law and rules is amended by adding a new
2 section 208-a to read as follows:

3 § 208-a. In custody at time of cause of action. Notwithstanding any
4 provisions of law that impose a period of limitation to the contrary or
5 any provisions of any other law pertaining to the filing of a notice of
6 claim or a notice of intention to file a claim as a condition precedent
7 to commencement of an action or special proceeding, with respect to all
8 civil claims or causes of action brought by any person to recover
9 damages for physical, psychological, or other injury or condition
10 suffered, while under the jurisdiction and in the care and custody or
11 supervision of: the state department of corrections and community super-
12 vision, a hospital as defined in subdivision two of section four hundred
13 of the correction law, a correctional facility as defined in subdivision
14 three of section forty of the correction law, a local correctional
15 facility as defined in subdivision two of section forty of the
16 correction law, an alternate correctional facility as defined in subdi-
17 vision one of section eighty-seven of the correction law, a police offi-
18 cer, peace officer, or other law enforcement official, or being held
19 pretrial, at the time in which the cause of action occurs, the time in

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 which such action must commence shall be extended to three years after
2 such person is released from such custody.

3 § 2. Subdivision 8 of section 50-e of the general municipal law is
4 amended by adding a new paragraph (c) to read as follows:

5 (c) Notwithstanding any provision of law to the contrary, this section
6 shall not apply to any civil claims or causes of action brought by any
7 person to recover damages for physical, psychological, or other injury
8 or condition suffered while in custody pursuant to section two hundred
9 eight-a of the civil practice law and rules, at the time the cause of
10 action occurred when such person was in custody pursuant to such
11 section.

12 § 3. Section 50-i of the general municipal law is amended by adding a
13 new subdivision 6 to read as follows:

14 6. Notwithstanding any provision of law to the contrary, this section
15 shall not apply to any civil claims or causes of action made against a
16 city, county, town, village, fire district or school district brought by
17 any person to recover damages for physical, psychological, or other
18 injury or condition suffered while in custody pursuant to section two
19 hundred eight-a of the civil practice law and rules, at the time when
20 such cause of action occurs.

21 § 4. Subdivision 2 of section 50-e of the general municipal law, as
22 amended by chapter 62 of the laws of 1983, is amended to read as
23 follows:

24 2. Form of notice; contents. The notice shall be in writing, sworn to
25 by or on behalf of the claimant, and shall set forth: (1) the name and
26 post-office address of each claimant, and of [~~his~~] such claimant's
27 attorney, if any; (2) the nature of the claim; (3) to the best of the
28 claimant's knowledge and belief, the time when, the place where and the
29 manner in which the claim arose; and (4) the items of damage or injuries
30 claimed to have been sustained so far as then practicable but a notice
31 with respect to a claim against a municipal corporation other than a
32 city with a population of one million or more persons shall not state
33 the amount of damages to which the claimant deems [~~himself~~] themselves
34 entitled, provided, however, that the municipal corporation, other than
35 a city with a population of one million or more persons, may at any time
36 request a supplemental claim setting forth the total damages to which
37 the claimant deems [~~himself~~] themselves entitled. A supplemental claim
38 shall be provided by the claimant within fifteen days of the request. In
39 the event the supplemental demand is not served within fifteen days, the
40 court, on motion, may order that it be provided by the claimant.

41 § 5. Section 10 of the court of claims act is amended by adding a new
42 subdivision 11 to read as follows:

43 11. Notwithstanding any provision of law to the contrary, this section
44 shall not apply to any civil claims or causes of action made against a
45 city, county, town, village, fire district or school district brought by
46 any person to recover damages for physical, psychological, or other
47 injury or condition suffered while in custody pursuant to section two
48 hundred eight-a of the civil practice law and rules.

49 § 6. Subdivision b of section 11 of the court of claims act, as
50 amended by chapter 606 of the laws of 2007, is amended to read as
51 follows:

52 b. The claim shall state the time when and place where, to the best of
53 the claimant's knowledge and belief, such claim arose which shall be
54 produced in the claim, the nature of same, the items of damage or inju-
55 ries claimed to have been sustained and, except in an action to recover
56 damages for personal injury, medical, dental or podiatric malpractice or

1 wrongful death, the total sum claimed. A claim for the appropriation by
2 the state of lands, or any right, title or interest in or to lands shall
3 include an inventory or itemized statement of fixtures, if any, for
4 which compensation is claimed. The notice of intention to file a claim
5 shall set forth the same matters except that the items of damage or
6 injuries and the sum claimed need not be stated. The claim and notice of
7 intention to file a claim shall be verified in the same manner as a
8 complaint in an action in the supreme court.
9 § 7. This act shall take effect immediately.